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| Book    | Policy Manual                                                                           |
| Section | BOARD POLICIES UNDER CONSIDERATION                                                      |
| Title   | Copy of Vol. 42, No. 1 - August 2023 New CARE OF STUDENTS WITH ACTIVE SEIZURE DISORDERS |
| Code    | po5337                                                                                  |
| Status  | First Reading                                                                           |

### **New Policy - Vol. 42, No. 1**

#### **5337 - CARE OF STUDENTS WITH ACTIVE SEIZURE DISORDERS**

The Board of Education is committed to ensuring that each student enrolled in the District who has an active seizure disorder receives appropriate and needed care in accordance with an order signed by the student's treating practitioner.

The school nurse or another designated employee of the District will create an individualized seizure action plan for each student with an active seizure disorder diagnosis. The plan will be developed in collaboration with a student's parent or guardian and the student, when appropriate. The plan will include the following:

- A. a written request signed by the parent, guardian, or other person having the care or charge of the student to have one (1) or more drugs prescribed for a seizure disorder administered to the student;
- B. a written statement from the student's treating medical practitioner that provides the drug information required by State law and Board policy for each drug prescribed and administered to the student;
- C. any other component required by the State Board of Education.

The term *treating practitioner* means a properly licensed physician, advanced practice registered nurse, or physician's assistant who has primary responsibility for treating a student's seizure disorder and has been identified as such by the student's parent, legal guardian, or other person having care or charge of the student, or if the student is eighteen (18) years of age, by the student.

Individual seizure action plans are only valid for the school year in which they are written and shall be renewed at least annually at the beginning of each school year. A physical copy of the plan will be maintained in the office of the school nurse, or with a building administrator if the District does not employ a full-time nurse.

The school nurse, or the building administrator if the District does not have a school nurse, will provide written notice summarizing the existence and content of the plan to all school employees, contractors, and volunteers who regularly interact with the student, have a legitimate educational interest in the student, are responsible for the direct supervision of the student, or provide transportation to the student to and from school or a school-related activity. The notice and the seizure plan will be maintained confidentially in accordance with Board policy and State law.

The school nurse or a building administrator will coordinate the student's care while at school and school-related activities and will ensure that appropriate staff, contractors, and volunteers who receive notice of the plan are also trained in the care of students with seizures. The nurse or a building administrator will also identify each individual who has received training to administer drugs prescribed for the treatment of seizure disorders.

The Superintendent will designate at least one (1) employee who does not serve as the school nurse for each school building operated by the Board to be trained every two (2) years on the implementation of seizure action plans. The Board will make arrangements for the training, which will include and be consistent with guidelines and best practices

established by a nonprofit organization selected by the Department of Education that supports the welfare of individuals with epilepsy and seizure disorders. The training will address all of the following topics:

- A. recognizing the signs and symptoms of a seizure;
- B. the appropriate treatment for a student who exhibits the symptoms of a seizure; and
- C. administering drugs prescribed for seizure disorders in accordance with State law.

The training will not exceed one (1) hour in length and will qualify as a professional development activity for the renewal of an educator license. If the training is provided to the District on portable media by a nonprofit entity, the training shall be provided free of charge.

Additionally, the Board shall require each person it employs as an administrator, guidance counselor, teacher, or bus driver to complete a minimum of one (1) hour of self-study or in-person training on seizure disorders. All employees who are employed as of October 3, 2023 will complete the training within twenty-four (24) months after that date. Thereafter, newly hired employees will complete the training within ninety (90) days. The training will qualify as a professional development activity for the renewal of an educator license.

R.C. 3313.7117

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